

25STCV10927 25STCV10927

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-09-15

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No.

8 - Artyom Harutyunyan v. Volvo Cars of North America, LLC

Plaintiff

Artyom Harutyunyan's Motion for Attorney Fees

Plaintiff Artyom Harutyunyan moves for

a total of \$62,597 in attorney fees and costs under Civil Code § 1794(d). The prevailing plaintiff may recover “the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794(d).)

Plaintiff

seeks \$51,390 for 98.3 hours incurred, consisting of 88.5 attorney hours and 9.8 paralegal hours. Plaintiff also seeks an additional \$929 in costs.

Plaintiff uses a 1.2 multiplier on the attorney fees, for an additional \$10,278.

Hourly

Rates

Plaintiff requests fees for time spent on the case by two licensed attorneys, Sam Azimash and Juliana Ter Haroutunian, and one paralegal. Plaintiff presents evidence of both attorneys’ qualifications and experience. (See Kohen Decl., ¶¶ 15-19.) They bill \$550 per hour. The paralegal rate is \$250 per hour.

Based on its knowledge of the legal market,

its review of the credentials and experience of Plaintiff's attorneys, and the particular tasks performed by counsel, the Court finds Plaintiff claims excessive hourly rates for counsel. This was a straightforward case that did not require superior expertise. Thus, the Court will reduce counsel's rates to \$500 per hour.

Hours

In calculating the lodestar, the court must determine whether the tasks performed by an attorney were necessary and whether the amount of time billed for each task was reasonable. (*Baxter v. Bock* (2016) 247 Cal.App.4th 775, 793.) The moving party has the burden of proof on these issues. (*Ibid.*)

A reduced award is justified when a case is "overlitigated" and the bills are "padded." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38.) For a "voluminous fee application," courts may "make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure." (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 41 (*Warren*); accord *Morris*, *supra*, 41 Cal.App.5th at p. 40 ["The court could properly have made an across-the-board reduction of 30 percent"].)

Overall,

Plaintiff's counsel billed a reasonable number of hours for tasks performed on the case. However, the Court will not award fees requested for "anticipated" tasks that were not needed. The Court will not award fees incurred for 5.7 anticipated hours spent reviewing an opposition brief and drafting a reply for this fee motion. No opposition was filed; thus, no reply brief was necessary. The Court will therefore award only 82.8 hours (88.5 requested less 5.7 not incurred) of attorney fees.

Multiplier

Plaintiff moves for a 1.2 multiplier. Multipliers may be awarded based on factors including "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) After considering all relevant factors, the Court finds a lodestar enhancement is not warranted. This case did not involve novel or difficult questions. Plaintiff's counsel did not demonstrate exceptional skill

in litigating the case. Counsel's hourly rates adequately account for representation on contingency. (See *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 395.)

Other

Costs

Plaintiff

seeks \$929 for costs. “[I]n enacting Civil Code section 1794, subdivision (d) the Legislature intended the phrase ‘costs and expenses’ to cover items not included in ‘the detailed statutory definition of “costs” ’ set forth in Code of Civil Procedure section 1033.5.” (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42.) “In awarding costs, a trial court’s first determination ... is whether the statute expressly allows the particular item, and whether it appears proper on its face. If so, the burden is on the objecting party to show them to be unnecessary or unreasonable.” (*Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 855, internal quotes and citations omitted.) As noted, Defendant did not oppose the request for costs.

The

Court finds that all costs were reasonably incurred and will award the requested amount of costs in full.

Therefore,

the Court will award a total of \$44,779 in attorney fees and costs on this motion. This includes (1) 82.8 hours at an adjusted rate of \$500 per hour (88.5 total hours subtracted by 5.7 unnecessary anticipated hours) (\$41,400) and (2) 9.8 hours at the paralegal rate of \$250 per hour (\$2,450). This totals \$43,850. The Court will then award \$929 in costs.

Disposition

Plaintiff Artyom Harutyunyan’s motion

for attorney fees is granted in part in the total amount of \$44,779 in fees and costs.